**Subject:** Government Speech and Resident Access to Town Infrastructure
**From:** Stephen Harrington <sth.alist@gmail.com>
**Date:** 10/5/26, 20:28
**To:** sbadmin@town.arlington.ma.us
**CC:** John Hurd <jhurd@town.arlington.ma.us>, Jim Feeney <jfeeney@town.arlington.ma.us>

Dear Ashley Maher,

Please, disseminate to Select Board members and add to Correspondence Received for inclusion in the next Board meeting (10/19?) including the attached image, also inline. Let me know if you need the entire email below as a pdf to include the image properly.
Dear Select Board,

My previous correspondence asked what authority permits the Town Moderator to impose binding rules on residents seeking access to Town infrastructure outside Town Meeting proceedings. This correspondence asks a related question: **whose speech is carried through that infrastructure?**

The Moderator has described the TMM Email List as “a service provided by the Town of Arlington” and has stated that it is “not a public forum.” He has also characterized the system as a Town function. At the same time, the Town Manager has stated that neither the Manager nor Select Board can direct the Moderator concerning these access rules.

Those statements leave an important issue unresolved.

The Town’s archive does not contain only reports, motions, official notices, or statements adopted by the Town. It contains letters, statements, presentations, arguments for and against pending articles, debate on pending legislation, and other advocacy expressly attributed to identifiable individuals.

The attached archive analysis documents a substantial change in practice. From 2015 through 2021, the structured archive contains 156 entries and was predominantly administrative and parliamentary material. From 2022 through 2026, it contains 441 entries and increasingly carries letters, statements, presentations, and other attributable advocacy.

**TMM Email List: Volume and Submission Mix by Moderator Era, 2015–2026**

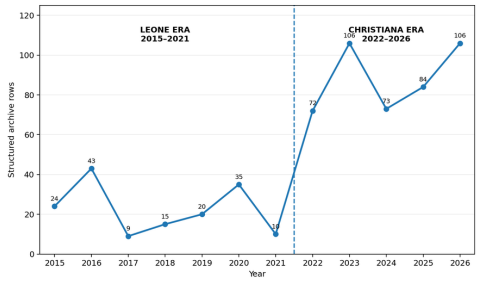
Leone 2015–2021 vs. Christiana 2022–2026 • structured archive rows

**4.0× more structured rows per year in 2022–2026 (22.3 → 88.2)**

**LEONE ERA • 2015–2021**

156 structured rows • 22.3/year

| Submission type | Rows |
|---|---|
| Report | 49 |
| Amendment | 27 |
| Substitute Motion | 16 |
| Materials | 15 |
| Video Presentation | 6 |
| Zoning Article Materials | 5 |
| Memo | 5 |
| Reference Material | 3 |




**The change is both quantitative and qualitative.**
Leading types shift from reports/motions/materials toward presentations, statements, and letters.

**CHRISTIANA ERA • 2022–2026**

441 structured rows • 88.2/year

| Submission type | Rows |
|---|---|
| Presentation | 62 |
| Amendment | 62 |
| Statement | 61 |
| Letter | 60 |
| Substitute Motion | 24 |
| Memo | 21 |
| Main Motion | 13 |
| Presentation Slides | 13 |
| Report | 12 |
| FAQ | 10 |
| Video Presentation | 9 |
| Materials | 7 |
| Item | 7 |
| Fact Sheet | 6 |
| Vote Language | 5 |
| Background Information | 5 |
| Unresolved Update | 5 |
| Supplemental Report | 4 |
| Video Testimony | 4 |
| Budget Presentation | 3 |

Source: workbook Summary sheets. “Structured rows” are extracted archive rows, not necessarily unique submissions.

The practical question is therefore not answered merely by calling the infrastructure a “Town function.” **A Town function can administer communications without every communication becoming the Town’s own speech.**

I respectfully request that Chairman Hurd direct the Town Manager and Town Counsel to state the Town’s position on the following:

1. Does the Town contend that letters, statements, and political advocacy by named private individuals published in the TMM Email List and Annotated Warrant constitute government speech of the Town of Arlington?
2. If not, what legal status does the Town assign to that private expression?
3. What authority permits the Moderator to require a resident to obtain a TMM intermediary before that private advocacy can enter Town infrastructure?
4. What authority permits review for “appropriateness,” and what objective standard governs that determination?
5. If the Moderator’s decision is final and neither the Select Board nor Town Manager may direct him, what governmental body can establish, amend, or review the policy?

I am requesting the Town to identify its position and the authority supporting the system it currently operates.

There is a straightforward prospective solution. An identified resident submitting germane material concerning a pending warrant article should be allowed direct access under objective rules governing deadlines, length, format, duplication, privacy, and security, with a written reason for rejection.

That would preserve orderly administration without requiring an elected intermediary or undefined discretionary review.

Respectfully,
Stephen Harrington

TMM_Email_List_Leone_vs_Christiana.png

## TMM Email List: Volume and Submission Mix by Moderator Era, 2015–2026

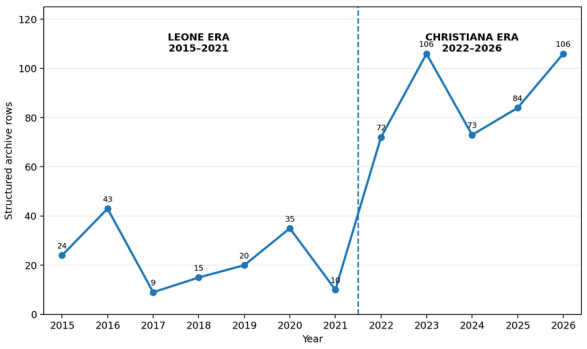
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**CHRISTIANA ERA • 2022–2026**

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## Attachments:

TMM_Email_List_Leone_vs_Christiana.png 202 KB